



SPONSOR: Sen. Pinkney & Rep. Cooke

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 158

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO COMMISSIONERS OF THE DELAWARE STATE FIRE COMMISSION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4319, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4319. Confidential communications involving first responders, civilian employees, or their families.

4 (a) For purposes of this section:

5 (5) “Critical incident stress management team member” or “CISM team member” means an individual
6 who satisfies all of the following:

7 a. Is specially trained to provide CISM services to assist and provide support to a first responder
8 who has been involved in a critical incident that may affect, or has affected, the person’s work
9 performance or general well-being.

10 b. Meets the requirements of a nationally-accredited critical incident stress management
11 organization or network that has been recognized by the Police Officer Standards and Training
12 ~~Commission.~~ Commission or the Commissioners of the Delaware State Fire Commission.

13 c. Has been approved to function as a CISM team member by the Delaware State Fire
14 Commission, or the colonel or chief of the police, fire, or emergency medical services agency of which
15 the individual is a member.

16 (10) “Trained peer support member” means a first responder designated by a state, county, or municipal
17 law-enforcement, fire, or emergency medical services agency, with approval from the agency’s colonel or chief,
18 Board of Commissioners, or Executive Director of the Delaware State Fire Commission, and specially trained to
19 provide a participant with wellness program services.

SYNOPSIS

This Act adds the Commissioners of the Delaware State Fire Commission as an agency that can recognize an individual as a critical incident stress management team member for purposes of determining whether certain communications are confidential under § 4319 of Title 10. The Act also allows for the Board of Commissioners and the Executive Director of the Delaware State Fire Commission to qualify a first responder as a trained peer support member for purposes determining whether certain communications are confidential under § 4319 of Title 10.